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'Unacceptable': Markey reintroduces legislation to combat bias in artificial intelligence

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Sen. Ed Markey, D-Mass., speaks at a press conference regarding Environmental Protection Agency Administrator Lee Zeldin's alleged attempts to strike down endangerment findings that greenhouse gases are harmful to public health and welfare, at the Capitol, Thursday, Feb. 27, 2025, in Washington.

Rod Lamkey / AP



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Morning Edition

U.S. Sen. Ed Markey from Massachusetts and other members of Congress are reintroducing the Artificial Intelligence Civil Rights Act, a piece of legislation previously introduced last year that seeks to ensure the algorithms driving AI tools such as ChatGPT do not reflect, perpetuate, or exacerbate preexisting biases.

The bill has what Markey describes as three key provisions. It would prohibit companies from offering, licensing, or using algorithms that discriminate on the basis of protected characteristics, like race or sex. It would require AI companies to conduct independent audits to identify and mitigate algorithmic discrimination. It also would give individuals the right to appeal an AI-based decision to a human, and empower the Federal Trade Commission, state attorneys general, and private individuals to enforce this part of the law.

At a press conference Tuesday, Markey — who is the bill's lead Senate sponsor — cited several examples to show that deep concern over AI incorporating and reproducing preexisting biases is justified.

“A 2019 report found that due in part to biased mortgage approval algorithms, lenders were 80% more likely to reject Black applicants than similar white applicants,” Markey said. “A 2022 study found that AI models used to predict liver disease were twice as likely to miss the disease in women than in men. A 2025 study found that AI resume screening tools almost never selected Black male names to proceed in the hiring process. This is unacceptable.”

The Rev. Chris Hope, who has been working with Markey on the bill and is involved with community organizing and education around AI, recently sat down with **GBH News Rooted** to discuss how the technology is affecting jobs and society. He said AI itself is neutral, and issues come from who has access to these tools and how they are used.

“When you talk about the Bill of Rights and Civil Rights Act, those are there to protect people — not just profits,” Hope said. “Right now we’re seeing in the United States pretty much if you have the money to play, then you can play. It’s often at the

expense for those on the other side of the algorithm, which tend to be Black and brown folks.”

Markey also noted that, at present, the AI industry and its supporters are pushing for a long-term federal ban on AI regulation at the state level.

A **provision** tucked into House version of the One Big Beautiful Bill would have prohibited such regulation for a decade, but was stripped away by the Senate in an unusually forceful and bipartisan **99-1 vote**. Now, President Donald Trump is considering signing an **executive order** instead that would create a nationwide ban on state-level regulation.

AI industry leaders and supporters of the industry in Congress and the Trump administration **maintain** that a varied patchwork of statewide regulations will limit innovation, hampering the country’s ability to compete with China.

Massachusetts Attorney General Andrea Joy Campbell was part of a bipartisan group of 36 attorneys general who recently **wrote** congressional leaders to urge them not to implement a ban on state-level regulation.

So far, though, the appetite for regulating AI here in Massachusetts seems mixed.

Recent **legislation** to create a new state commission tasked with identifying AI’s uses in state government and determining possible regulatory next steps never became law, for example. And Gov. Maura Healey has been consistently bullish on the economic **possibilities** the burgeoning AI industry presents for Massachusetts, which she **envisions** as an international hub for AI innovation.

Markey was joined at his press conference by Reps. Yvette Clarke, Pramila Jayapal and Summer Lee, as well as by Damon Hewitt, president and executive director of the Lawyers’ Committee for Civil Rights Under Law, and Maya Wiley, president and CEO of the Leadership Conference on Civil and Human Rights. Rep. Ayanna Pressley of Massachusetts was slated to attend but did not.

In her remarks, Wiley called the bill a “historic piece of legislation” that is desperately needed.

“Guess what innovation is not? Harmful. Guess what innovation is not? Discriminatory. And guess who needs to be protected with civil rights laws? Everybody,” Wiley said.

“Just remember that when we’re talking about civil rights — because we are in an administration that is refusing to acknowledge this fact — it protects every single one of us,” Wiley added.

“70 million people in this country have a disability. What race are they? Every one. And we know that an algorithm even discriminates against someone qualified for a job, maybe because they have a facial tic because they have a disability. And that is discrimination even when it’s a white man.”



Adam Reilly X

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